

MEMORANDUM OF UNDERSTANDING

Reference: Change of holiday observance

The Ball-Chatham Educational Support Professionals Association, IEA/NEA ("BCESPA") and the Ball-Chatham School District #5 Board of Education agree to modify Article XIV, Paid Holidays, Section 14.5.

Background

Observance of Veteran's Day holiday to be floating holiday for school years 2017-2018 and 2018-2019

Purpose

This MOU will modify the previously observed holiday of Veteran's day as a floating holiday for 2017 and 2018 only, to be observed the day before Thanksgiving.

Article XIV, Paid Holidays, Section 14.5, shall make Veteran's day a floating holiday for the 2017 year only, and replace the holiday observance with the day before Thanksgiving in its place. Staff would maintain the same number of paid holidays for the 2017 year. Since Veteran's day falls on a Saturday in 2017 and a Sunday in 2018, the Friday prior and Monday after would have been observed as the holiday previously and would not be paid at 1 ½ time (per section 14.6), as that holiday would be floated the day before Thanksgiving.

Section 14.5 shall now read as follows, only for 2017 and 2018:

Section 14.5 Paid Holidays- Twelve-month employees working at least 7 ½ hours per day will be paid for those holidays designated by the School Code and/or the Board of Education unless the District has obtained a waiver from the Illinois State Board of Education.

The following is a list of paid holidays per Board policy 5:330:

New Year's Day; Dr. Martin Luther King, Jr.'s birthday; President's day; Good Friday; Memorial Day; Independence Day; Labor Day; Columbus Day; Day before Thanksgiving; Thanksgiving Day; Day after Thanksgiving day; Christmas Eve; and Christmas Day.

If there is a change in legal holidays as defined by the Illinois School Code, the law shall take precedent over this section of the bargaining agreement.

Duration

The Association and the Board acknowledge that this Memorandum of Understanding shall be without precedent and shall not serve to otherwise amend any term or condition of the Collective Bargaining Agreement between the Board and the BCESPA.

This agreement is made by the 18th day of January 2017 by:



Date: 2/8/17

Steve Copp, President

Board of Education, Ball-Chatham CUSD #5



Date: 8 Feb 2017

Barry Woodworth, President

Ball-Chatham Educational Support Professionals Association, IEA/NEA (BCESPA)